

# STATE OF NEW YORK

9065--A

Cal. No. 636

## IN SENATE

January 28, 2026

Introduced by Sen. PARKER -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law, in relation to the reconnection of service for low-income customers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 1 of section 35 of the public service law, as amended by chapter 686 of the laws of 2002, is amended to read as follows:

1. The commission shall by regulation establish reasonable conditions under which an electric or gas corporation or municipality shall be required to take all actions within such corporation or municipality's control and, where applicable, consistent with the provision of the agreement for commodity service, if any, between the corporation and the customer, provided such provisions are consistent with this article to reconnect service to residential customers. Such conditions shall include, but not be limited to, requirements for reconnection of service within twenty-four hours, unless prevented by circumstances beyond the utility's or municipality's control, (a) upon receipt by a corporation or municipality of the full amount of arrears which were the basis for termination of service, (b) upon the signing of a deferred payment plan together with a down payment based on criteria to be established by the commission, provided that no such down payment shall exceed ~~[one-half]~~ one-third of the amount which was the basis of termination, or the amount of ~~[three months billing]~~ the previous month's bill, whichever is less, (c) upon the direction of the commission, (d) upon the receipt of a commitment of a direct payment or a written guarantee of payment from the social services official of the social services district in which the customer resides ~~[or]~~, (e) where the utility or municipality has notice that a serious impairment to health or safety is likely to result if service is not reconnected or (f) where a low-income customer has

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 demonstrated an inability to pay the full amount of arrears which were  
2 the basis for termination of service, upon the signing of a reconnection  
3 plan where such low-income customer shall pay no more than three percent  
4 of such customer's monthly income on their electric service, and no more  
5 than three percent of such customer's monthly income on gas service,  
6 plus such customer's current monthly bill. For combination electric and  
7 gas customers, such low-income customer shall pay no more than six  
8 percent of such customer's monthly income plus such customer's current  
9 monthly bill. With respect to reconnection on the basis of serious  
10 impairment of health or safety doubts shall be resolved in favor of  
11 reconnection of service. The [~~chairman~~] chair shall designate such offi-  
12 cers and employees as [~~he~~] such chair deems necessary to act on requests  
13 for service reconnections. For the purposes of this subdivision, a  
14 "low-income customer" shall mean any customer whose household income is  
15 lower than the state median income, regardless of if such customer is  
16 enrolled in a utility company's energy affordability program, or if such  
17 customer is the recipient of any form of public assistance.

18 § 2. This act shall take effect on the ninetieth day after it shall  
19 have become a law. Effective immediately, the addition, amendment and/or  
20 repeal of any rule or regulation necessary for the implementation of  
21 this act on its effective date are authorized to be made and completed  
22 on or before such effective date.